Justice

Executive Summary

The justice system is not fit for purpose in a Te Tiriti centric Aotearoa.

It was designed without Māori, imposed upon us, and continues to function as a tool of control rather than justice.

For generations, the Crown has fractured whakapapa, punished poverty, and criminalised survival.

The system has failed to keep communities safe, reduce harm, and honour Te Tiriti o Waitangi. Māori remain over-policed, over-charged, over-convicted, and over-incarcerated. There is nothing more unjust than the mass incarceration of indigenous peoples on their own land.

For Māori, justice is not defined by punishment but by balance. True justice is grounded in accountability, restoration, healing, and the return of authority to whānau, hapū and iwi.

Te Pāti Māori is committed to dismantling a justice system that harms Māori and replacing it with one that restores mana, reduces harm, and protects our people.

Context

Māori are more likely to be stopped, searched, arrested, denied bail, convicted, and imprisoned than anyone else in Aotearoa.

Rangatahi Māori are criminalised early and often, beginning a pipeline from state care to youth justice to prison.

Poverty, trauma, addiction, disability, and mental distress are met with punishment instead of support.

Multiple inquiries have found that the Crown's justice system breaches Te Tiriti o Waitangi and perpetuates systemic racism.

It has been almost 40 years since the publication of Moana Jackson's ground-breaking report, He Whaipaanga Hou, and no progress has been made to address the overincarceration of tangata whenua. Māori men still make up over half of the male prison population, and the rate of incarceration for wāhine Māori is now one of the highest in the world.

Incremental reform has failed. Structural transformation is required.

Our Position

Justice must be grounded in whakapapa, tikanga, and collective responsibility.

True justice requires Māori authority over Māori outcomes. It requires shifting power, resources, and decision-making out of Crown institutions and into Māori hands.

Te Pāti Māori will...

1. Establish an Independent Māori Justice Authority

- The Authority will:
    - Operate independently of existing Crown justice agencies
    - Hold real decision-making power
    - Be tikanga-led and whakapapa-centred
    - Be accountable to Māori communities.
- Funding will be reallocated from existing justice budgets, including:
    - 50% of Vote Corrections
    - 50% of Vote Police
    - 50% of Vote Courts.
- The Authority will enable Māori-led justice visions, including He Whaipaanga Hou and Ināia Tonu Nei, to be fully realised.

2. Invest in Kaupapa Māori Justice Services

- Te Pāti Māori will invest directly in Māori-designed and Māori-delivered justice services, including:
    - An Independent Māori Legal Aid Service
    - Kaupapa Māori Community Law Centres
    - Māori legal units within existing community law centres.
- Expanded support for Māori Wardens
- Justice services delivered through Whānau Ora providers
- Justice services will be devolved to iwi, hapū, and Māori organisations closest to whānau.

3. Implement Waitangi Tribunal Recommendations

- Te Pāti Māori will implement all relevant Waitangi Tribunal recommendations relating to justice, including WAI 3060 – Te Rau o Te Tika (Justice inquiry)
- Tribunal findings will guide justice sector transformation.

4. Overhaul Discriminatory Laws and Practices

- Repeal Three Strikes Legislation
- Repeal Gangs Legislation
- Repeal Sentencing (Reform) Amendment Act
- Repeal the Bail Amendment Act
- Raise the age of criminal responsibility from 10 to 16
- Amend the Clean Slate Act to apply to custodial sentences
- End benefit attachment orders
- Introduce a judgement-proof debtor policy
- Require all Police officers to wear body cameras
- Replace the ‘Independent’ Police Conduct Authority with a genuinely independent, Māori-grounded oversight body.
- Reinstate Funding for Section 27 Sentencing Reports (Cultural Reports).

5. Decriminalise Drug Use

- Overhaul Misuse of Drugs Act so that drug use is treated as a health issue.
- Wipe criminal convictions for drug use and possession.

Te Pāti Māori will...

6.Uphold Human Rights for People in Prison

- End the use of solitary confinement as punishment.
- Expand rehabilitation, healing, and recovery services.
- Ensure adequate access to whānau and cultural support.
- Guarantee safe accommodation, food, healthcare, and humane living conditions.
- Improve reintegration support.
- Increase the Steps to Freedom Grant to $1,000.

7. Invest in Mental Health and Addiction Services

- Expand Mental Health Co-response Teams.
- Increase funding for Whānau Ora.
- Double investment in prevention, harm reduction, and treatment for alcohol and drug harm.
- Shift responses from enforcement to care.
- All services will be Māori-designed and whānau-centred.

8. Achieve Electoral Justice

- Restore voting rights for all people in Corrections facilities.
- Lower the voting age to 16.
- Allow people to register to vote at any time.
- Allow Māori to switch rolls at any time.
- Ensure boundary reviews are conducted before every election.

9. Close Military Style Bootcamps and Youth Justice Residences

- Military Style Bootcamps will be closed immediately.
- Youth justice residences will be closed by 2030.
- Rangatahi will be supported through:
    - Whānau-based care.
    - Tikanga-grounded rehabilitation programmes.
    - Education, training, and healing pathways.
    - Trauma-informed, community-based responses.

10. Abolish Prisons by 2040

- Te Pāti Māori commits to the abolition of prisons by 2040, replacing them with community-based, restorative, and tikanga-led alternatives.
- This transition will:
    - Reduce harm and reoffending.
    - Address the root causes of offending.
    - Restore accountability through community-led processes.
    - Protect public safety through prevention, not punishment.

Our Commitment

Te Pāti Māori is committed to ending a justice system that perpetuates cycles of harm and avoids the root-causes of crime by building one that restores balance, protects whānau, and honours Te Tiriti o Waitangi.